

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2731

By: Kendrix

AS INTRODUCED

An Act relating to the Administrative Procedures Act; amending 75 O.S. 2021, Section 308.3, as amended by Section 6, Chapter 38, O.S.L. 2023 (75 O.S. Supp. 2024, Section 308.3), which relates to joint resolutions of the Legislature; updating reference to rule submission date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 75 O.S. 2021, Section 308.3, as amended by Section 6, Chapter 38, O.S.L. 2023 (75 O.S. Supp. 2024, Section 308.3), is amended to read as follows:

Section 308.3. A. The Legislature shall have joint resolutions prepared for consideration each session.

B. For the purpose of this section, a proposed permanent rule may be disapproved, in whole or in part, in a joint resolution considered by the Legislature.

C. If any rule received on or before the date established pursuant to paragraph 1 of subsection A of Section 308 of this title is not subject to a joint resolution passed by both houses of the

1 Legislature and signed by the Governor or is found by the Governor
2 to have a technical legal defect preventing approval of
3 administrative rules intended to be approved by the Legislature, the
4 Governor may declare any rules received on or before ~~April 1~~
5 February 1 and not subject to a joint resolution passed by both
6 houses of the Legislature to be approved or disapproved and finally
7 adopted by publishing a single declaration in "The Oklahoma
8 Register" on or before July 17. If the Governor finds that the
9 joint resolution has a technical legal defect, the Governor shall
10 make the finding in writing and submit the finding to the
11 Legislature.

12 SECTION 2. This act shall become effective November 1, 2025.

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